

Court No. - 3

Case :- WRIT - C No. - 1049 of 2022

Petitioner :- Chandan Dehiya And Another

Respondent :- Madhyanchal Vidyut Vitaran Nigam Ltd. Thru. M.D. And 3 Others

Counsel for Petitioner :- Gaurav Mehrotra, Maria Fatima, Shreya Srivastava

Counsel for Respondent :- Aprajita Bansal

Hon'ble Attau Rahman Masoodi, J.

Hon'ble Narendra Kumar Johari, J.

Sri Gaurav Mehrotra, learned counsel for the petitioners is permitted to serve the opposite parties no. 3 and 4 through Dasti besides normal mode of service.

Ms Aprajita Bansal, learned counsel for the respondents has stated that disconnection has not been resorted to and the authorities are not likely to disconnect the electricity connection till the next date of listing.

List on 23.3.2022 in the list of fresh cases.

The benefit of this order shall not be available unless extended.

Order Date :- 22.2.2022

Fahim/-

Court No. - 3

Case :- WRIT - C No. - 1049 of 2022

Petitioner :- Chandan Dehiya And Another

Respondent :- Madhyanchal Vidyut Vitaran Nigam Ltd. Thru.
M.D. And 3 Others

Counsel for Petitioner :- Gaurav Mehrotra, Maria
Fatima, Shreya Srivastava

Counsel for Respondent :- Aprajita Bansal

Hon'ble Attau Rahman Masoodi, J.

Hon'ble Narendra Kumar Johari, J.

Sri Shishir Singh Chauhan, learned counsel has put in appearance on behalf of opposite party Nos. 3 & 4.

Learned counsel for the opposite parties prays for two weeks time to file counter affidavit, to which, rejoinder affidavit may be filed within one week thereafter.

List after expiry of the aforesaid period.

Till the next date of listing, opposite parties No. 1 & 2 shall not resort to disconnect the electricity connection subject to the payment of regular bills by the petitioners.

It is, however, open to opposite party Nos. 3 & 4 to avail the appropriate remedy against the petitioners for their eviction, to which the supply of energy shall remain subject to.

It is also open to the parties to resolve the dispute amicably in the meantime.

Order Date :- 23.3.2022

Reena/-

Court No. - 3

Case :- WRIT - C No. - 1049 of 2022

Petitioner :- Chandan Dehiya And Another

Respondent :- Madhyanchal Vidyut Vitaran Nigam Ltd. Thru.
M.D. And 3 Others

Counsel for Petitioner :- Gaurav Mehrotra, Harsha
Yadav, Maria Fatima, Shreya Srivastava

Counsel for Respondent :- Aprajita Bansal, Adarsh Pratap
Singh, Shishir Singh Chauhan

Hon'ble Attau Rahman Masoodi, J.

Hon'ble Narendra Kumar Johari, J.

Sri Gaurav Mehrotra, learned counsel for the petitioners prays
for three days further time to file rejoinder affidavit.

Time prayed for is granted.

List in the week commencing 1.8.2022.

The interim order, if any, is extended till the next date of listing.

Order Date :- 19.7.2022

AKK

Court No. - 2

Case :- WRIT - C No. - 1049 of 2022

Petitioner :- Chandan Dehiya And Another

Respondent :- Madhyanchal Vidyut Vitaran
Nigam Ltd. Thru. M.D. And 3 Others

Counsel for Petitioner :- Gaurav Mehrotra, Maria
Fatima, Shreya Srivastava

Counsel for Respondent :- Aprajita
Bansal, Adarsh Pratap Singh, Harsha Yadav, Shishir
Singh Chauhan

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Manish Kumar, J.

List after four weeks.

Interim order, if any, shall continue till the next
date of listing.

Order Date :- 12.1.2023

Darpan Sharma

Court No. - 3

Case :- WRIT - C No. - 1049 of 2022

Petitioner :- Chandan Dehiya And Another

Respondent :- Madhyanchal Vidyut Vitaran Nigam Ltd. Thru.
M.D. And 3 Others

Counsel for Petitioner :- Gaurav Mehrotra, Maria
Fatima, Shreya Srivastava

Counsel for Respondent :- Aprajita Bansal, Adarsh Pratap
Singh, Harsha Yadav, Pranav Agarwal, Shishir Singh Chauhan

Hon'ble Vivek Chaudhary, J.

Hon'ble Manish Kumar, J.

Rejoinder affidavit filed today is taken on record.

On joint request of learned counsel for the parties, list in the
next cause list.

Interim order, if any, is extended till the next date of listing.

(Manish Kumar, J.) (Vivek Chaudhary, J.)

Order Date :- 18.9.2023

Arjun/-

Court No. - 3

Case :- WRIT - C No. - 1049 of 2022

Petitioner :- Chandan Dehiya And Another

Respondent :- Madhyanchal Vidyut Vitaran Nigam Ltd.
Thru. M.D. And 3 Others

Counsel for Petitioner :- Gaurav Mehrotra, Maria
Fatima, Shreya Srivastava

Counsel for Respondent :- Aprajita Bansal, Adarsh Pratap
Singh, Harsha Yadav, Pranav Agarwal, Shishir Singh Chauhan

Hon'ble Vivek Chaudhary, J.

Hon'ble Manish Kumar, J.

Sri Pranav Agarwal, learned counsel for the respondent has
sent an illness slip.

List this case on 30.10.2023 amongst top 10 cases.

(Manish Kumar, J.) (Vivek Chaudhary, J.)

Order Date :- 18.10.2023

Nitesh

Court No. - 3

Case :- WRIT - C No. - 1049 of 2022

Petitioner :- Chandan Dehiya And Another

Respondent :- Madhyanchal Vidyut Vitaran Nigam Ltd.
Thru. M.D. And 3 Others

Counsel for Petitioner :- Gaurav Mehrotra, Maria
Fatima, Shreya Srivastava

Counsel for Respondent :- Aprajita Bansal, Adarsh Pratap
Singh, Harsha Yadav, Pranav Agarwal, Shishir Singh Chauhan

Hon'ble Vivek Chaudhary, J.

Hon'ble Manish Kumar, J.

One of the counsel for the respondent, Ms. Aprajita Bansal is reported to be ill.

List this case on 06.11.2023 on the top of the list.

Interim order, if any, shall continue till the next date of listing.

(Manish Kumar, J.) (Vivek Chaudhary, J.)

Order Date :- 30.10.2023

Nitesh

Court No. - 3

Case :- WRIT - C No. - 1049 of 2022

Petitioner :- Chandan Dehiya And Another

Respondent :- Madhyanchal Vidyut Vitaran Nigam Ltd. Thru. M.D. And 3 Others

Counsel for Petitioner :- Gaurav Mehrotra, Maria Fatima, Shreya Srivastava

Counsel for Respondent :- Aprajita Bansal, Adarsh Pratap Singh, Harsha Yadav, Pranav Agarwal, Shishir Singh Chauhan

Hon'ble Vivek Chaudhary, J.

Hon'ble Manish Kumar, J.

1. Heard learned counsel for petitioners, Ms. Aprajita Bansal, learned counsel for respondent no.1 power corporation and learned counsel for respondent no.3 and 4.

2. Learned counsel for petitioners submits that petitioners are occupiers of property in dispute and are residing in the same. They are having an electricity connection since the year 2016 which is sought to be disconnected by the respondent no.1 power corporation in the year 2022, hence, petitioners have filed present writ petition.

3. Learned counsel for petitioners submits that there can at best be a dispute with regard to security of payments of bills of the power corporation and for the said purposes petitioners are ready and willing to submit indemnity bond as provided in Clause 4.4 read with Annexure 4.2 of Electricity Supply Code, 2005.

4. Learned counsel for respondent no.3 and 4 strongly opposes the submission of counsel for petitioners. He submits that it is respondent no.3 and 4 who are owner of the property and petitioners' occupation of the same is illegal. He further submit

power corporation should not provide any electricity connection to the petitioners.

5. Learned counsel for Electricity Board submits that since there was a dispute hence, connection was being withdrawn and in case petitioners submit indemnity bond as per law the same shall be duly provided.

6. We have considered the submissions of counsel for parties.

7. It is not in dispute that petitioners are living in property since long and were having an electricity connection. There may a dispute between petitioner and respondent no.3 & 4 with regard to property. Respondent no.3 and 4 in the said circumstances can take proceedings in accordance with law for eviction of petitioners. No law can permit an owner to disconnect the municipal services of a person occupying the property and force him to live in an inhumane condition and coercively evict him. Eviction from a property can only take place in accordance with law. Annexure 4.2 of the Electricity Supply Code, 2005 specifically provide that an occupier of a building can give indemnity bond for connection so that payment of the dues of electricity consumed by him are assured to be paid to the power corporation and that liability does not fall upon the property or the landlord.

8. In view thereof, it is provided that petitioners shall submit required indemnity bond in accordance with Annexure 4.2 of Electricity Supply Code, 2005 to respondent no.2 Sub-Divisional Officer, 33/11 K.V. Electricity Sub Station, New Alambagh, MVVNL, Lucknow within a period of 15 days from today along with a certified copy of this order. Respondent no.2 shall duly consider the same and in case of any lacunae, require

petitioner to complete the same which petitioners shall duly complete at the earliest. The electricity supply of the petitioners shall remain undisturbed.

9. It goes without saying that respondent no.3 and 4, who claimed to be owner of the property, can take appropriate proceedings against the petitioners for their eviction in accordance with law and this order or the electricity connection provided to the petitioners under this order shall not in any manner create any right in favour of petitioners for the said proceedings.

10. It is further made clear that respondent no.1 power corporation shall not insist upon the title documents from the petitioners as was claimed earlier.

11. With the aforesaid, the writ petition is **allowed.**

Order Date :- 6.11.2023

Arti/-

[Manish Kumar,J.]

[Vivek Chaudhary,J.]